

APPLICATION OF ONERA, LLC
FOR A PRODUCTION PERMIT FROM
THE HAYS TRINITY GROUNDWATER CONSERVATION DISTRICT

FILED AUGUST 4, 2022

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Application of Onera LLC for
a Production Well Permit

Onera LLC (the “Applicant”) intends to develop two contiguous tracts of land totaling 19.89 acres (the “Property”) as an Eco-Boutique Hospitality Center with the construction of a unique 32 Unit “Primitive Inn” to be known as Onera Buttercup Inn at 801 Buttercup Lane approximately 1 mile southeast of Wimberley, Texas, off FM 3237 (the “Project”). Attached hereto for reference is a copy of the Survey of the Property (Appendix “A”) and a Preliminary Site Plan for the Project (Appendix “B”).

Applicant plans to construct and operate 28 Guest Units situated in the ambiance of the Wimberley Valley of the Texas Hill Country. There will also be an apartment for the Inn’s caretakers-in-residence, as well as amenities.

As potable water service for the Project is not available from any existing retail water utility, Applicant seeks a production permit from the Hays Trinity Groundwater Conservation District (“HTCGCD”) to construct and operate a TCEQ approved Public Water Supply Well on the Property (the “PWS Well”). The proposed PWS Well, and the produced water, will be used exclusively to service the potable water supply needs of the Guest of the Project.

No water produced pursuant to the requested permit will be used for any purpose off of the Property. Additionally, the produced groundwater will not be used for irrigation. Instead, irrigation water for the Project will be supplied through a combination of two non-potable water sources: (i) rainfall harvesting, and (ii) beneficial reuse of grey water collected, treated and recycled within the Property.

There is an existing well on the Property that was constructed to operate as an exempt domestic well to serve household needs of a prior owner. Details of the well, including construction date, depth and/or whether it has been registered, are unknown. To ensure that the existing well is registered with the HTGCD, a completed Registration Form is attached hereto as Appendix “C,” and incorporated by reference.

Applicant plans to use this well primarily for “monitoring,” but will seek authorization to use it as a back-up well if necessary in case the proposed well ever becomes out-of-service for a period of time that it creates a service issue to the Project. The proposed PWS Well will be completed in the lower Cow Creek formation of the Middle Trinity Aquifer. Estimated depth is 630 feet below ground level. Additional details about the proposed PWS Well are included in the well profile attached hereto as Appendix “D.” A completed Proposed Well Construction Notification Application is included as Appendix “E.”

Based upon the current Site Plan (Appendix “B”), Onera projects its groundwater supply needs to be 5.66 acre-feet per year (1,844,317 gallons). Attached hereto as Appendix “F” is a copy of the Applicant’s calculations for this demand volume. As noted, none of the requested groundwater will be used for irrigation purposes.

The information provided in the HTGCD Application Form is further supplemented with the following Appendices attached hereto and incorporated by reference for all purposes:

- Appendix "G" is a copy of Applicant's Water Conservation Plan;
- Appendix "H" is a copy of Applicant's Drought Contingency Plan; and
- Appendix "I" is a copy of the Check in payment of the Application Fee.



Mailing: PO Box 1648, Dripping Springs, TX 78620
Physical: 14101 Hwy 290 West, Bldg. 100, Suite 212, Austin, TX 78737
Office (512) 858-9253
gm@haysgroundwater.com www.haysgroundwater.com

NEW OPERATING PERMIT APPLICATION

A. Contact Information

Name of Place/Business name where groundwater is used: **Onera, LLC - Stay Onera**

Well Owner Name: **Onera, LLC Attention Ben Wolff, CEO**

Owner Phone Number: **203/314-1450**

Owner Mailing Address: **2106 Malvern Hill Drive**

City: **Austin**

Zip Code: **78754**

Owner Physical Address: **801 Buttercup Lane**

City: **Wimberley**

Zip Code: **78676**

Physical Address of Place of Groundwater Permit Use:

801 Buttercup Lane

City: **Wimberley**

Zip Code: **78676**

Address of Well(s) if different from place of use:

Same

City:

Zip Code:

B. Permit Compliance

Permit Contact (Name of person responsible to uphold permit): **Ben Wolff, CEO Onera, LLC**

Email: **ben@stayonera.com**

Phone Number: **203/314-1450**

C. Meter Reading Compliance

Reporting Contact (responsible for reading meters, recording readings, and submitting quarterly or monthly pumping reports) **Ben Wolff, CEO**

Individual's Name (and Company, if applicable): **Ben Wolff, CEO**

Email: **ben@stayonera.com**

Phone: **203/314-1450**

D. Purpose of Groundwater Use:

- ☐ IRRIGATION ONLY ☒ TCEQ PUBLIC WATER SYSTEM (see 30 TAC 290.38) ☐ COMMUNITY WATER SYSTEM (5 to 15 residences)
☐ INDUSTRIAL ☐ COMMERCIAL ☐ OTHER, describe:

E. Annual Production Amount Request

Requested Annual Production Amount: **5.66 af/yr (1,844,317 GALLONS PER YEAR)**

(Production Amount is the quantity of groundwater you are requesting in gallons or acre-feet *per year*. 325,851 gallons = 1 Acre Foot)

Requested Rate of Withdrawal (gallons per minute): **3.5 GPM AVERAGE DAILY RATE**

F. HTGCD Well Registration Number(s), Capacity, and Point(s) of Withdrawal (for each well associated with the permit)

Well Number/Latitude/Longitude: PWS Well No. 1 30° 0'11.61"N 98° 4'18.55"W: Existing Property Non-PWS Well
 30° 0'11.34"N 98° 4'20.52"W (AS A MONITOR WELL AND EMERGENCY BACKUP WELL)

Well Capacity (gallons per minute): As per TCEQ Minimum Criteria: 32 Units x 0.6 GPM/UNIT = 19.2 GPM

G. Tier Requirements

Select the appropriate Tier associated with your permit request. See District Rule 11 for more information.

☐ **Tier 1** (2 acre feet or less): **No Test**

☒ **Tier 2** (More than 2 acre feet, less than or equal to 6 acre feet): **Well Performance Test**

☐ **Tier 3** (More than 6 acre feet): **Aquifer Test**

H. Additional Water Sources

Wimberley WSC declined providing water service, since property is located outside their Water CCN.

Does the location have access to surface water? ☒ No ☐ Yes (describe, including Water Utility name if applicable):

Please describe any additional water sources, volume, and intended use (rainwater catchment, effluent reuse, etc.):

Rainwater Harvesting and Effluent Reuse/Greywater

I. Groundwater Management Zone

Is the well(s) located within a HTGCD Groundwater Management or Study Zone? Specific rules apply to wells and permits within a Zone. Please see ([insert website link to map](#)) and HTGCD Rules 15 and 16 for more information.

☒ No

☐ Jacob's Well Groundwater Management Zone (District Rule 15)

☐ Regional Recharge Study Zone (District Rule 16)

J. Requirements for Administrative Completeness Checklist (documentation to complete and submit)

☒ Well Construction Notification(s) / Well Registration(s)

☒ Permit-Specific Drought Contingency Plan

☒ Permit-Specific Water Conservation Plan

☒ Project Engineering Plans

☒ Property Plat, Survey, or Map of the parcel showing the location of the proposed well(s) and that includes existing or proposed buildings, all water wells (including those abandoned, deteriorated, or not currently in service), septic tanks, septic disposal areas, driveways, barns, feedlot, ponds, creeks, rivers, intermittent streams, property lines, and all other known or suspected sources of pollution.

☐ Geophysical Log of the well(s) **PWS Well not currently drilled.**

☐ Well Performance Test and Report (Tier 2) **PWS Well not currently drilled.**

- ☐ Aquifer Test and Report (Tier 3)
- ☐ State Well Report for existing well(s) associated with the Operating Permit Application
- ☐ Provide evidence that the well(s) do not allow comingling between sub-aquifers
- ☐ Proof of flow meter installation
- ☐ Proof of installation of an access tube

K. Permit Detail		
Number of days open per week: 7	Number of Part-Time Employees: 4	Number of Full-Time Employees:2
Number of Toilets: 40	Number of Sinks: 78	Number of Baths/Showers:40
Number of Ponds or Pools: 1	Length, Width, Depth: 900 S.F.	Lined with: Gunite
Non-Rainwater Water Storage Capacity (gallons): 1000	Rainwater Storage Capacity (gallons): 5000	
Will rainwater be used for outdoor irrigation and/or indoor needs? Please explain.		Yes. Each unit will have rainwater collection and water storage vessel.
Describe all outdoor irrigation (grass, shrubs, trees, etc.): Native plants and flowers		
Will groundwater be used as a material item within your business? Please explain.		Public water supply, pool supply, and very limited irrigation area.
Number of Current water connections made to your well(s) (homes, RV slips, buildings, ponds, pools, irrigation systems, etc.): 0		
Total number of water connections at full build out: 32	Total number of occupants at full build out:	68 People: 2 employees will live on site. Daily transient population estimated at 66 persons.

L. Formulas and Calculations Provide detail used to determine Annual Production Amount.
See attached table - Appendix "D".

M. Requirements for Administrative Completeness Checklist (documentation to complete and submit)

☒ I understand that Conformance to HTGCD Rules does not eliminate requirements for the applicant or contractor to conform with other State laws, Conditions, or Requirements. Review 30 TAC 290.38 (14) and Well Construction Standards.

☒ I understand that upon District notification, District staff may need to inspect my well and meter.

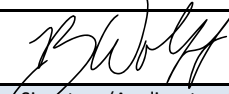
☒ I understand District Rule 3.5.5: The General Manager shall inform the applicant in writing of any deficiencies in the application. If the applicant fails to provide the required information within 180 days of the notice of deficiency, the application will be denied. The General Manager may request clarification of any information provided on the application or in any attachment thereto.

☒ I understand that I am responsible for submitting meter readings to the District quarterly even if my production used is zero.

☒ I understand that I must pay HTGCD water connection fees, at the going rate, any time I make a water connection to my system.

N. Sworn Statement

I certify under penalty of law that this document and all attachments were prepared under my direction or supervision. The information submitted is, to the best of my knowledge and belief, true, accurate, and complete. I am aware there are significant penalties for submitting false information. I agree to operate the well in accordance with the Hays Trinity Groundwater Conservation District's Rules, terms, conditions, and all permit provisions. I further state that I am the applicant or I am authorized to act for the applicant.

/s/ Ben Wolff, CEO		August 4, 2022
Print Name (Applicant or Authorized Agent)	Signature (Applicant or Authorized Agent)	Date

PLEASE SEE ATTACHED AGENCIES/DOCUMENTS IN SUPPORT OF THIS APPLICATION.

DISTRICT USE ONLY

Date Submitted:

Received by:

Date Administratively Complete:

Evaluated by:

Well Construction Notification Number(s)/Well Registration Number(s):

Appendix “A”

[illegible]

TOP
IMPROVE

[illegible]

TOPOGRAPHIC, BOUNDARY, IMPROVEMENT, & TREE SURVEY 14.60 ACRE TRACT OF LAND VOLUME 1491, PAGE 48 3.29 ACRE TRACT OF LAND DOCUMENT NO. 21027272 HAYS COUNTY, TEXAS	DRAWING INFORMATION <table border="1" style="width: 100%; border-collapse: collapse;"> <tr> <td style="width: 30%;">DESIGNED BY</td> <td style="width: 30%;">NAME</td> <td style="width: 30%;">DATE</td> <td style="width: 10%;">BY</td> </tr> <tr> <td>DRAWN BY</td> <td>NAME</td> <td>DATE</td> <td>BY</td> </tr> <tr> <td>CHECKED BY</td> <td>NAME</td> <td>DATE</td> <td>BY</td> </tr> <tr> <td>APPROVED BY</td> <td>NAME</td> <td>DATE</td> <td>BY</td> </tr> <tr> <td colspan="2">SHEET NO.</td> <td colspan="2">SHEET TOTAL</td> </tr> <tr> <td colspan="2">1 OF 1</td> <td colspan="2">1 OF 1</td> </tr> </table>	DESIGNED BY	NAME	DATE	BY	DRAWN BY	NAME	DATE	BY	CHECKED BY	NAME	DATE	BY	APPROVED BY	NAME	DATE	BY	SHEET NO.		SHEET TOTAL		1 OF 1		1 OF 1		ASH & ASSOCIATES LAND SURVEYORS 1402 JACKSON AVE. LAWRENCE, MISSOURI 64503 PHONE (816) 842-1178 FAX (816) 842-1179 E-MAIL: ash@ashassoc.com WWW.ASHASSOC.COM									
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Appendix “B”

Prepared For:
ONERA DEVELOPMENT LLC

Address:
800 & 999 BUTTERCUP LANE
WIMBERLEY, TX 78676

Drawn By: AV

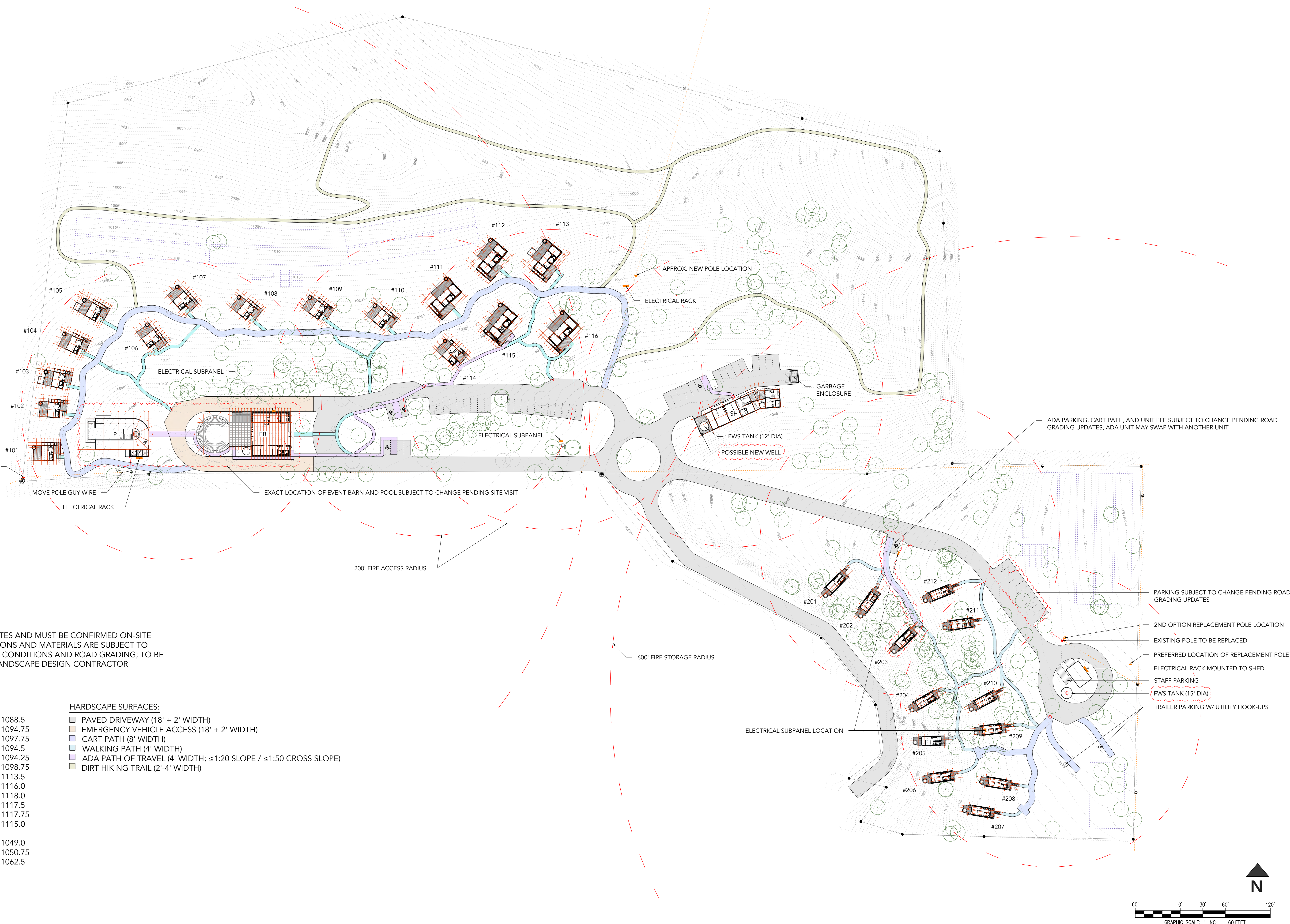
REV	DATE	DESCRIPTION
V4.3	6.10.22	GC Review / DD Updates
V4.4	6.13.22	Site Visit
V4.5	6.16.22	Staking Points
V4.6	6.20.22	Update per 6.14.22 Site Visit

NOT FOR CONSTRUCTION

G10

PROPOSED SITE
PLAN

1" = 60'-0"



NOTE:

- FFE'S ARE ESTIMATES AND MUST BE CONFIRMED ON-SITE
- PATHWAY LOCATIONS AND MATERIALS ARE SUBJECT TO CHANGE PER SITE CONDITIONS AND ROAD GRADING; TO BE CONFIRMED BY LANDSCAPE DESIGN CONTRACTOR

FFE:

#101: 1034.5	#201: 1088.5
#102: 1033.75	#202: 1094.75
#103: 1032.0	#203: 1097.75
#104: 1030.5	#204: 1094.5
#105: 1027.75	#205: 1094.25
#106: 1034.0	#206: 1098.75
#107: 1025.5	#207: 1113.5
#108: 1026.25	#208: 1116.0
#109: 1025.75	#209: 1118.0
#110: 1028.0	#210: 1117.5
#111: 1026.0	#211: 1117.75
#112: 1020.0	#212: 1115.0
#113: 1027.5	
#114: 1041.25	P: 1049.0
#115: 1039.75	EB: 1050.75
#116: 1047.75	SH: 1062.5

HARDSCAPE SURFACES:

- PAVED DRIVEWAY (18' + 2' WIDTH)
- EMERGENCY VEHICLE ACCESS (18' + 2' WIDTH)
- CART PATH (8' WIDTH)
- WALKING PATH (4' WIDTH)
- ADA PATH OF TRAVEL (4' WIDTH; $\leq 1:20$ SLOPE / $\leq 1:50$ CROSS SLOPE)
- DIRT HIKING TRAIL (2'-4' WIDTH)

Appendix “C”

Next Board Meeting - August 4, 2022 | Current Drought Stage - Emergency! 40% Curtailment Distr' x - wide and 30% Curtailment in the Jacob Well Groundwater Management Zone

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Existing Well Registration Request

A. WELL OWNER INFORMATION

(*) denotes a required field

First Name: *

Onera, LLC

Last Name: *

Rauschuber

Primary Phone: *

(203) 314-1450

Mailing Address: *

2106 Malvern Hill Drive

City: *

Austin

State: *

TX

Zip: *

78745

Email: (For fastest response of confirmation) *

ben@stayonera.com

B. WELL LOCATION



0015

Next Board Meeting - August 4, 2022 | Current Drought Stage - Emergency! 40% Curtailment Distr' x
wide and 30% Curtailment in the Jacob Well Groundwater Management Zone

Physical Address:

801 Buttercup Drive

City: *

State:

Zip: *

Wimberley

TX

78676

Use the url link below to find your well's latitude & longitude. Click on the link, enter your physical address, click the 'Show Location' button. Zoom in on the map using the '+', select the satellite imagery and move the pin to the location of your well. Copy the coordinates and enter them below.

[Google Maps](#)

Latitude (i.e. 30.123400)

Longitude (i.e. -98.021234)

30.003150°

-98.072367°

C. WELL USE (Check One)

- ☒ Exempt: (Residential/Domestic, Agricultural, Geothermal)
☐ Non-Exempt: (Commercial/Business, Public Water Supply, Retail Water Supply)

D. WELL DETAIL (if known)

Date Drilled:

Driller

Well Depth (feet):

UNKNOWN
mm/dd/yyyy

UNKNOWN
--Select--

UNKNOWN

E. WELL RECORDS

If you have hardcopies of well records for your well (i.e. drillers log, State Well Report), please email them to staff3@haysgroundwater.com or mail to P.O. Box 1648, Dripping Springs, TX. 78620 NOT AVAILABLE

F. PREPARED BY (if different than owner)

Donald G. Rauschuber, P.E.



Next Board Meeting - August 4, 2022 | Current Drought Stage - Emergency! 40% Curtailment Distr' x ·
wide and 30% Curtailment in the Jacob Well Groundwater Management Zone

G. COMMENTS

Existing Property Residentail Well

By pressing the "Submit Well Registration" button below, you certify the following:

I hereby register my water well with Hays Trinity Groundwater Conservation District for the purposes indicated on this form.

I certify that I am the property owner/grantor or lessee/grantee or an Authorized Agent, and that the information provided on this form is true and correct to best of my knowledge. Agreed.

I will comply with HTGCD District Rules.

Submit

HAYS TRINITY GROUNDWATER CONSERVATION DISTRICT

Our mission is to conserve, preserve, recharge and prevent waste of groundwater within western Hays County. In support of the District's mission, we provide educational materials and information about our water resources.

IMPORTANT LINKS

[Strategic Water Vision 2021](#)

[Water Wise Speaker Series](#)



0017

Next Board Meeting - August 4, 2022 | Current Drought Stage - Emergency! 40% Curtailment Distr' x ·
wide and 30% Curtailment in the Jacob Well Groundwater Management Zone

CONTACT

🏠 Hays Trinity Groundwater Conservation District
PO Box 1648
Dripping Springs, TX 78620

✉ staff3@haysgroundwater.com

📞 [512-858-9253](tel:512-858-9253)

Username or Email Address

Password

☐ Remember Me

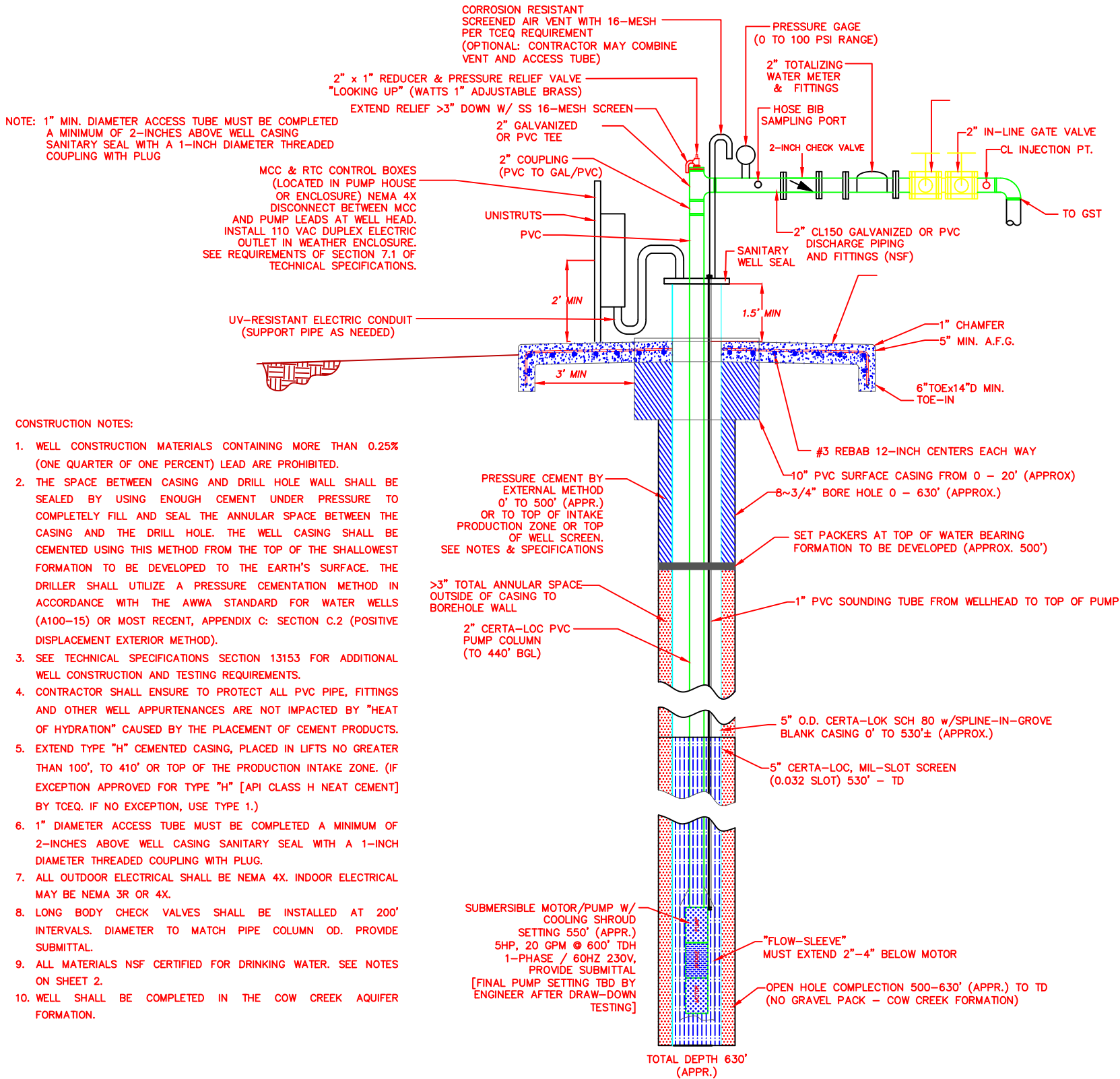
Log In

[Lost your password?](#)

©Hays Trinity Groundwater Conservation District 2021



Appendix “D”



CONSTRUCTION NOTES:

1. WELL CONSTRUCTION MATERIALS CONTAINING MORE THAN 0.25% (ONE QUARTER OF ONE PERCENT) LEAD ARE PROHIBITED.
2. THE SPACE BETWEEN CASING AND DRILL HOLE WALL SHALL BE SEALED BY USING ENOUGH CEMENT UNDER PRESSURE TO COMPLETELY FILL AND SEAL THE ANNULAR SPACE BETWEEN THE CASING AND THE DRILL HOLE. THE WELL CASING SHALL BE CEMENTED USING THIS METHOD FROM THE TOP OF THE SHALLOWEST FORMATION TO BE DEVELOPED TO THE EARTH'S SURFACE. THE DRILLER SHALL UTILIZE A PRESSURE CEMENTATION METHOD IN ACCORDANCE WITH THE AWWA STANDARD FOR WATER WELLS (A100-15) OR MOST RECENT, APPENDIX C: SECTION C.2 (POSITIVE DISPLACEMENT EXTERIOR METHOD).
3. SEE TECHNICAL SPECIFICATIONS SECTION 13153 FOR ADDITIONAL WELL CONSTRUCTION AND TESTING REQUIREMENTS.
4. CONTRACTOR SHALL ENSURE TO PROTECT ALL PVC PIPE, FITTINGS AND OTHER WELL APPURTENANCES ARE NOT IMPACTED BY "HEAT OF HYDRATION" CAUSED BY THE PLACEMENT OF CEMENT PRODUCTS.
5. EXTEND TYPE "H" CEMENTED CASING, PLACED IN LIFTS NO GREATER THAN 100', TO 410' OR TOP OF THE PRODUCTION INTAKE ZONE. (IF EXCEPTION APPROVED FOR TYPE "H" [API CLASS H NEAT CEMENT] BY TCEQ. IF NO EXCEPTION, USE TYPE 1.)
6. 1" DIAMETER ACCESS TUBE MUST BE COMPLETED A MINIMUM OF 2-INCHES ABOVE WELL CASING SANITARY SEAL WITH A 1-INCH DIAMETER THREADED COUPLING WITH PLUG.
7. ALL OUTDOOR ELECTRICAL SHALL BE NEMA 4X. INDOOR ELECTRICAL MAY BE NEMA 3R OR 4X.
8. LONG BODY CHECK VALVES SHALL BE INSTALLED AT 200' INTERVALS. DIAMETER TO MATCH PIPE COLUMN OD. PROVIDE SUBMITTAL.
9. ALL MATERIALS NSF CERTIFIED FOR DRINKING WATER. SEE NOTES ON SHEET 2.
10. WELL SHALL BE COMPLETED IN THE COW CREEK AQUIFER FORMATION.

AUGUST 1, 2022
Don. Rauschuber P.E.

dgra		Donald G. Rauschuber & Associates, Inc.		CONSULTANTS ■ Water Engineering ■ Municipal Engineering	
SURVEYED	DESIGNED	DRAWN	CHECKED	DATE	FILE NAME:
NONE	DGR	DGR	DGR	08012022	ONERA
PRELIMINARY			ONERA, LLC PUBLIC WATER		
			SUPPLY WELL - PROFILE		
N.T.S.			REGISTERED PROFESSIONAL ENGINEER		
SHEET 1 OF 1					

Appendix “E”

Next Board Meeting - August 4, 2022 | Current Drought Stage - Emergency! 40% Curtailment District-wide and 30% Curtailment in the Jacob Well Groundwater Management Zone

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Well Construction Notification Application

This form provides notification to the District of intent to drill a well. This includes other aquifer penetration within the boundaries of the Hays Trinity Groundwater Conservation District.

A well is any artificial penetration, excavation, borehole or other man-made feature constructed for the purposes of exploring for or producing groundwater, or for injection, cathodic, monitoring, de-watering purposes or a leachate or remediation well. Also includes a closed loop well. (e.g. geothermal systems, etc.)

A. WELL OWNER INFORMATION

Any person who has the right to produce groundwater, either by ownership, contract, lease, easement, or any other estate in the land.

(*) denotes a required field

Business/Organization: (if applicable)

Onera, LLC

10 of 45 max characters



0022

Next Board Meeting - August 4, 2022 | Current Drought Stage - Emergency! 40% Curtailment District-wide and 30% Curtailment in the Jacob Well Groundwater Management Zone

Onera, LLC

Jacob Well

Mailing Address: *

2106 Malvern Hill Drive

City: *

Austin

State: *

TX

Zip: *

78745

Phone: *

(203) 314-1450

Alternate Phone:

(830) 591-6099

Email: (Only used for confirmation and HTGCD communication about well) *

ben@stayonera.com

- ☐ Is this well being installed as part of a near term real estate transaction? If so, the new owner must register the ownership change within 60 days of the transaction.

B. WELL LOCATION

(*) denotes a required field

- ☐ Well Location Same as Section A Owner Address?

Address *

801 Buttercup Lane

City: *

Wimberley

State *

TX

Zip: *

78676

Hays County Property ID # *

15822 Parcel 1; 19990 Parcel 2

Latitude (Degrees, Minutes, Seconds)



0023

Next Board Meeting - August 4, 2022 | Current Drought Stage - Emergency! 40% Curtailment Distr^{*} wide and 30% Curtailment in the Jacob Well Groundwater Management Zone

30 0 14.66 N

Longitude (Degrees, Minutes, Seconds)

Degrees *	Minutes *	Seconds *	Direction
98°	4'	25.50"	W ▾

Elevation (in feet): (Can use Google Earth or GPS device)

Parcel 1 1060' msl Parcel 2 1094' msl

Provide specific directions to the location of the well on the property

30° 0'11.61"N 98° 4'18.55"W

C. WELL SPACING STANDARDS

(*) denotes a required field

How many feet is the well from the closest property line? *

150'

How many feet is the well from an existing well? *

180'

How many feet is the well from a concentrated source of potential contamination, such as livestock or poultry facilities? *

> 150'

How many feet is the well from a septic system drain field or wastewater irrigation system? *

> 150'



Next Board Meeting - August 4, 2022 | Current Drought Stage - Emergency! 40% Curtailment District-wide and 30% Curtailment in the Jacob Well Groundwater Management Zone

I understand that my well must be grouted 100' if my well does not meet the minimum spacing requirements. My well meets the minimum spacing requirements. *

- ☒ Yes
☐ No

Is the well located within 50 feet of or within the service area of a public water system? *

- ☐ Yes
☒ No

Which system? (Optional)

Is property within a groundwater management zone? *

- ☒ No
☐ Yes Jacob's Well Groundwater Management Zone
☐ Yes Regional Recharge Study Zone

(see [map](#) to check locations of zones)

D. WELL DRILLER'S INFORMATION

(*) denotes a required field

Company Contracted

Company: *

If driller is not in list, please complete the following information.

Address: *



0025

Next Board Meeting - August 4, 2022 | Current Drought Stage - Emergency! 40% Curtailment District-wide and 30% Curtailment in the Jacob Well Groundwater Management Zone

Dripping Springs

TX

78620

License Number: ***Phone Number: *****Email: ***

4227

512-894-0555

erin@ctdwaterwells.com

4 of 30 max characters

E. PUMP INSTALLER'S INFORMATION

(*) denotes a required field

☐ Same as Section D. Driller?

Company Contracted**Company: ***

Centex Pump & Supply



Centex Pump & Supply

If driller is not in list, please
complete the following
information.

Address: *

2520 Hwy 290 West

City: ***State: *****Zip: ***

Dripping Springs

TX



78620

License Number: ***Phone Number: *****Email: ***

4227

512-894-0555

erin@ctdwaterwells.com

4 of 30 max characters

F. GENERAL WELL INFORMATION

If this is a new well, please provide an estimate.

(*) denotes a required field



Next Board Meeting - August 4, 2022 | Current Drought Stage - Emergency! 40% Curtailment District-wide and 30% Curtailment in the Jacob Well Groundwater Management Zone

8 7/8"

Pump Size (hp): *

2

Production Capability (gpm): *

10 - 15

Anticipated Start Date of Drilling/Alteration:

01/02/2023

Where will water from the well be used? *

Exclusively on-site.

G. PURPOSE OF WELL

Check one.

(*) denotes a required field

Exempt Purpose Types

Residential / Domestic Well

- ☐ A well used solely for domestic use by a single private residential household incapable of producing more than 25,000 gallons per day. The use of groundwater by an individual or a household, including a home-based business, including water for use inside the home; for irrigation of lawns, or of a family garden and/or orchard; for watering of domestic animals; for swimming pool associated with a single residence, for stock watering pond of less than 1/4 acre extent with an average depth of less than 3-feet, lined with bentonite, geomembrane, or an equivalent sealing material as adjudged by the District.



0027

Next Board Meeting - August 4, 2022 | Current Drought Stage - Emergency! 40% Curtailment District-wide and 30% Curtailment in the Jacob Well Groundwater Management Zone

for human food, animal feed, or planting seed or for the production of fibers; (B) Practicing floriculture, viticulture, silviculture, and horticulture, including the cultivation of plants in containers or non-soil media, by a nursery grower; (C) Raising, feeding, or keeping animals for breeding purposes or for the production of food or fiber, leather, pelts, or other tangible products having a commercial value; (D) Planting cover crops, including cover crops cultivated for transplantation, or leaving land idle for the purpose of participating in any governmental program or normal crop or livestock rotation procedure; (E) Engaging in wildlife management as defined in Texas Tax Code Section 23.51(7); and, (F) Raising or keeping equine animals.

Texas Agricultural or Timber Registration Number

☐ **GeoExchange**

Number of Wells

Non-Exempt Purpose Types

Irrigation

- ☐ Use of groundwater to supply water for application to plants or land in order to promote growth of plants, turf, or trees. Irrigation use for agricultural purposes and for residential purposes is exempt from obtaining an operating permit. All other irrigation use must obtain an operating permit.

Public Water System

- ☒ A system as defined by 30 Texas Administrative Code Section 290.38 for providing water to the public for human consumption.

Community Water System

- ☐ A system other than a public water system, that supplies groundwater to long term living units such as apartment complexes, town homes, or more than 4 dwellings



Next Board Meeting - August 4, 2022 | Current Drought Stage - Emergency! 40% Curtailment District-wide and 30% Curtailment in the Jacob Well Groundwater Management Zone

person, corporation, public utility, water supply corporation, municipality, political subdivision or agency operating, maintaining, or controlling within the District facilities for providing potable water service for compensation.

Commercial

- ☐ The use of groundwater to supply water to properties or establishments that are in business to build, supply or sell products, or provide goods, services or repairs and that use water in those processes, or to supply water to the business establishment primarily for employee and customer conveniences (i.e. flushing of toilets, sanitary purposes, or limited landscape watering).

De-watering Well

- ☐ A well used for lowering the water table for construction purposes.

Industrial

- ☐ Use of groundwater primarily in the building, production, manufacturing, or alteration of a product or goods, or to wash, cleanse, cool, or heat such goods or products.

Injection Well

- ☐ A well used to inject water or other material into a subsurface formation or into pipe or tubing placed in the formation for the purpose of storage or disposal of the fluid.

Monitor Well

- ☐ A well generally used for collecting water-quality and/or water -level data on an ongoing basis.

Aquifer Test Well / Observation Well

- ☐ A well for observing water level changes during an aquifer test.

Aquifer Test Well / Pumping Well

- ☐ The pumping well used during an aquifer test.

Remediation

- ☐ A well used to pump or vent contaminated air, water, or fluids from the ground.

Other Purpose Type



Next Board Meeting - August 4, 2022 | Current Drought Stage - Emergency! 40% Curtailment District-wide and 30% Curtailment in the Jacob Well Groundwater Management Zone

H. FEE

New Well Construction Fee

\$1,000.00

Wells used solely for agricultural purposes are exempt from fees provided a copy of the 'Texas Agricultural or Timber Registration' is submitted to the district.

Select Payment Method *

☒ Check / Money Order

☒ I understand that if my check is returned for NSF, I am responsible for * the NSF fee charged by the bank.

I. PREPARED BY

By signing this form, I declare that I have knowledge of the information provided in this form and that it is true and correct, to the best of my knowledge and belief. Furthermore, I am familiar with all pertinent requirements contained in the Hays Trinity Groundwater Conservation District Rules including the District's well construction standards. I understand that within 60 days after the completion of the well, the driller submits the State of Texas Well Report (Well Log) to the District.

Conditions *

☒ I agree to the conditions.

Well Owner: *

Onera, LLC by Mr. Wolff, CEO

First

Last

Contact Information (if different from Section A):

Address:

2106 Malvern Hill Drive



0030

Next Board Meeting - August 4, 2022 | Current Drought Stage - Emergency! 40% Curtailment District-wide and 30% Curtailment in the Jacob Well Groundwater Management Zone x

August

1A

10/45

Phone Number:

(203) 214-1450

J. COMMENTS**Submit**

0031

Next Board Meeting - August 4, 2022 | Current Drought Stage - Emergency! 40% Curtailment District-wide and 30% Curtailment in the Jacob Well Groundwater Management Zone

DISTRICT

Our mission is to conserve, preserve, recharge and prevent waste of groundwater within western Hays County. In support of the District's mission, we provide educational materials and information about our water resources.

IMPORTANT LINKS

[Strategic Water Vision 2021](#)

[Water Wise Speaker Series](#)

[Agendas / Meeting Minutes](#)

CONTACT

 Hays Trinity Groundwater Conservation District
PO Box 1648
Dripping Springs, TX 78620

 staff3@haysgroundwater.com

 [512-858-9253](tel:512-858-9253)

Username or Email Address

Password

☐ Remember Me

Log In

[Lost your password?](#)



Next Board Meeting - August 4, 2022 | Current Drought Stage - Emergency! 40% Curtailment District-wide and 30% Curtailment in the Jacob Well Groundwater Management Zone

©Hays Trinity Groundwater Conservation District 2021



Appendix “F”

PRELIMINARY - SUBJECT TO REVISION
OVERVIEW OF ONERA PROJECTED WATER SUPPLY NEEDS IN SUPPORT OF A HTGCD PRODUCTION PERMIT

ITEM NO.	MAP COLOR CODE	PROJECTED ONERA PWS WATER DEMAND						
		DESCRIPTION	NUMBER OF UNITS	UNITS	WATER USE PER UNIT PER DAY PER HTGCD RULE OF 110 GALS/PERSON PER DAY (GALLONS)	PROJECTED WATER USE PER DAY (GALLONS)	PROJECTED PWS WATER USE PER YEAR (GALLONS) BASED ON A 365 DAY YEAR	PROJECTED PWS WATER USE PER YEAR (AC-FT/YEAR) BASED ON A 365 DAY YEAR
1	Black	One Bedroom Cabin	23	23	220	5060	1846900	5.67
2	Blue	Two Bedroom Cabin	5	5	330	1650	602250	1.85
3	Green	Service Building Complex:						
4		One Bedroom Apartment	1	1	220	220	80300	0.25
5		One Laundry	1	1	100	100	36500	0.11
6		Office Included Above	0	0	20	0	0	0.00
7		Garage	0	0	0	0	0	0.00
8		Pump Room	0	0	0	0	0	0.00
9	Purple	Event Barn	1	1	100	100	36500	0.11
10	Red	Pool	<u>1</u>	<u>1</u>	<u>83</u>	<u>83</u>	<u>30294</u>	<u>0.09</u>
11		TOTAL	32	32		7213	2,632,744	8.08

PROJECTED ANNUAL ONERA PWS WATER DEMAND =

8.08 ACRE-FEET PER YR

DEDUCTION RELATED TO NON-IRRIGATION DEMAND = -30%

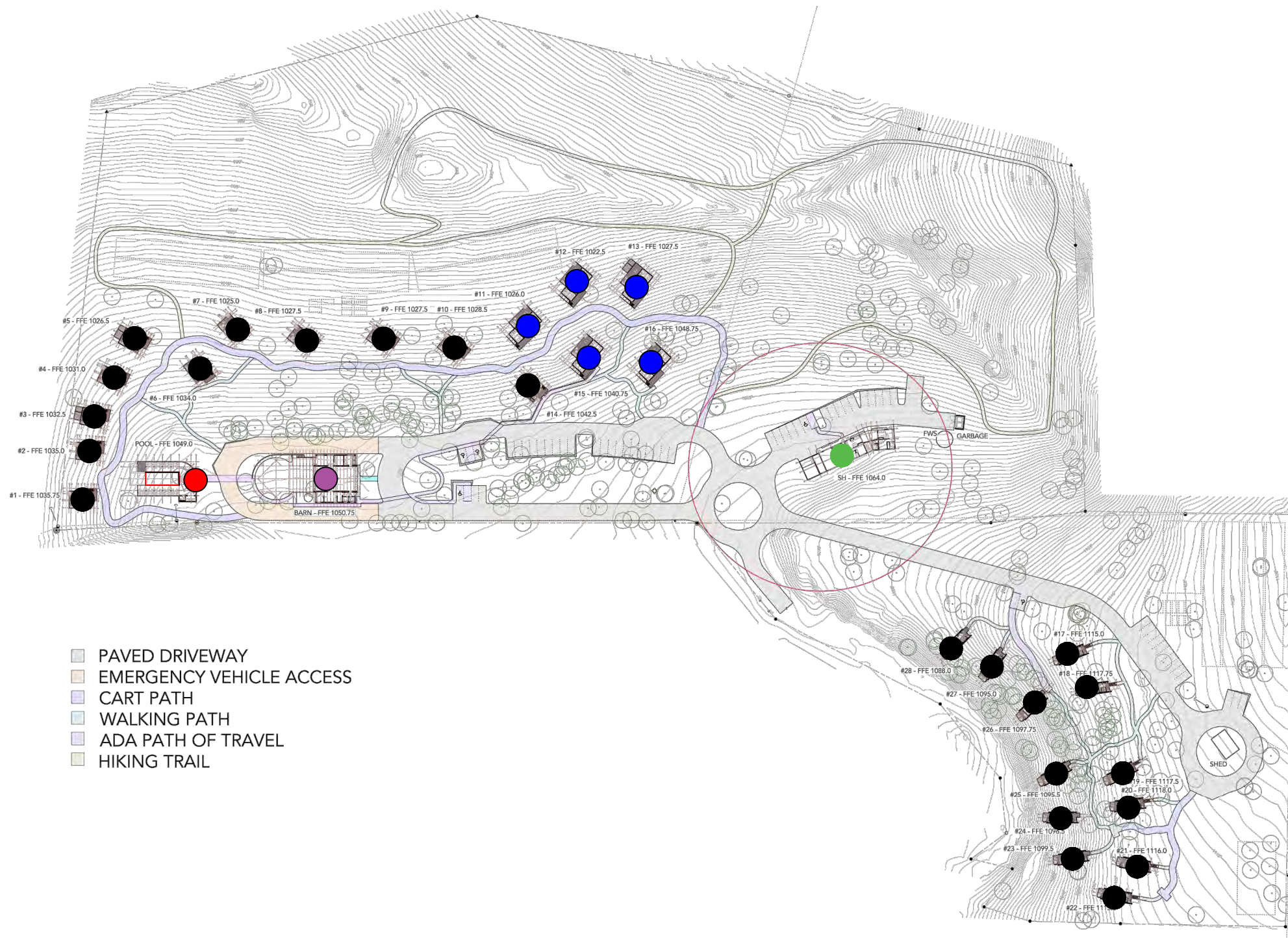
-2.42 ACRE-FEET PER YR

PROJECTED ONERA ANNUAL POTABLE GROUNDWATER PRODUCTION DEMAND =

5.66 ACRE-FEET PER YR

NOTE: ONERA PROJECTED IRRIGATION DEMAND TO BE SATISFIED WITH ON-SITE GREY WATER AND RAINWATER HARVESTING.

2.02 ACRE-FEET PER YR



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ARTISTREE[®]
HOME

Artistree Home LLC
1223 Paleofaco Ranch Rd
Spicewood, TX 78669
512.923.7822

ONBC SITE PLAN

Prepared For:
ONERA DEVELOPMENT LLC

Address:
800 & 999 BUTTERCUP LANE
WIMBERLEY, TX 78676

Drawn By: AV

NOT FOR CONSTRUCTION

SIGNATURE & SEAL

G2
SITE OVERVIEW

DATE 4.15.2022

Appendix “G”



Hays Trinity Groundwater Conservation District

Mailing: PO Box 1648, Dripping Springs, TX. 78620
Physical: 14101 Hwy 290 West, Bldg. 100, Suite 212, Austin, TX. 78737
Office (512) 858-9253
gm@haysgroundwater.com www.haysgroundwater.com

WATER CONSERVATION PLAN (WCP)

Name of Place where groundwater will be used Onera Wimberley 801 Buttercup Lane Wimberley

Name of Person Responsible to uphold permit Ben Wolff, CEO, Onera, LLC

Responsible Person's Company Name Onera, LLC - Texas SOS Filing No. 80385596

The Permittee will:

Outdoors/Leak Detection and Repair:

1. Repair all leaks, line breaks, and faulty fixtures, and check systems on a regular schedule;
2. Use water-efficient landscape practices including native plants, xeriscaping, drip irrigation, and automatic sprinkler systems;
3. If irrigating, adopt a one-day watering schedule during hot months. This may be based on a municipal or area-wide published calendar related to street addresses.

Indoors:

1. Implement an on-going program of system leak detection and repair which shall include the consideration and utilization of improved technologies when possible;
2. Recommend low flow/low volume fixtures be installed in all new construction;
3. When replacing old fixtures, do so with low flow/low volume products.

General:

1. Notify all employees of the Water Conservation Plan;
2. Post signs at faucets, sinks, outdoor spigots, and other water sources reminding employees to use water wisely;
3. During staff meetings and when appropriate, suggest ways for employees to reduce water consumption in order to promote and encourage voluntary conservation measures;
4. Require employees to report all faulty fixtures or leaks to maintenance for repair;
5. Assist District in the distribution of conservation and educational materials;
6. Periodically review and evaluate this water conservation plan and implement revisions to the plan as necessary;
7. Develop policies to monitor, mediate, and enforce compliance with this water conservation plan.

This Water Conservation Plan has been adopted as part of the requirements of the Hays Trinity Groundwater Conservation District and includes complying with all District Rules.

☒ I understand and agree that my typed name is considered my official signature.

Signature

Date

8/4/22

Appendix “H”



Hays Trinity Groundwater Conservation District

Mailing: PO Box 1648, Dripping Springs, TX. 78620
Physical: 14101 Hwy 290 West, Bldg. 100, Suite 212, Austin, TX. 78737
Office (512) 858-9253
GM@haysgroundwater.com www.haysgroundwater.com

USER DROUGHT CONTINGENCY PLAN (UDCP)

Name of Place where groundwater will be used: Onera Wimberley 801 Buttercup La
Name of Person Responsible to uphold permit: Ben Wolff, CEO, Onera, LLC
Responsible Person's Company Name: Onera, LLC - Texas SOS Filing No.

INTRODUCTION

This UDCP will enable you to manage your water system and water resources in a conscientious, fair, and appropriate manner during District declared drought conditions. It is not designed to punish, stigmatize, or criticize anyone about their usage of water. Its sole intent is to maintain an adequate supply of groundwater during the various stages of drought conditions or other water supply emergencies, which may occur from time to time.

SECTION 1 - Declaration of Policy, Purpose, and Intent

As a permit holder with the District, I believe that significant reductions in water usage can be achieved through drought triggered water use curtailments and other voluntary efforts. I understand that implementation of voluntary water conservation measures and conscientious water use practices are encouraged at all times. However, additional water use curtailments are required in case of District-declared drought stages, periods of abnormally high usage, system contamination, or extended reduction in ability to supply water due to equipment failure.

Should drought conditions reach more severe stages, I have planned and am prepared to further curtail my usage.

As a permit holder with the District, it is our continuing effort to maintain an adequate supply of high quality water as detailed in this UDCP. In order to maintain supply, storage, pressure, or to comply with regulatory requirements, temporary restrictions may be instituted to limit nonessential water usage. This UDCP satisfies and complies with HTGCD Rules.

As the permit holder with the District, being the responsible official, I agree to comply with all applicable District Rules, the Drought Cutback Chart, the Water Conservation Plan, and the measures of the enclosed User Drought Contingency Plan, and to officially adopt the enclosed plan through the appropriate vehicle (e.g., ordinance, TCEQ tariff amendment, policy amendment).

SECTION 2 - Drought Notice

The District will notify permittees of the implementation or termination of each drought stage on the District website. Permittees must then inform all employees/tenants/end users prior to implementation or termination of each stage. Notice of the District declaration must be provided at least 72 hours prior to the start of water use restrictions.

SECTION 3 - Drought Stage Triggers

Upon District notification of Drought Stage Declaration, as the permit holder, I will activate the respective response measures of this User Drought Contingency Plan, our Water Conservation Plan, and curtail our production according to our Drought Cutback Chart. I understand that the District drought triggers can be reviewed on the District website www.haysgroundwater.com under Drought Management.

SECTION 4 - Alternate Water Sources

If applicable, identify any alternate water sources or any other contingency to be utilized or implemented directly by the utility to manage limited water supplies in the event of water supply contamination or system outage. The alternate supply or other contingency shall be evidenced by documentation (contracts, affidavits, etc.) that demonstrates the availability when needed.

The alternate water source/contingency) is: Haul In Water

SECTION 5 - Drought Stages and Production Cutback

As the permit holder, I shall perform and adhere to the actions specified within this UDCP, within the Water Conservation Plan, and those curtailments listed on my Drought Cutback Chart (image below is a generic sample only) during District declared drought stages.

District Drought Stages:

No Drought/Voluntary Conservation: 10% reduction
20% reduction
30% reduction
40% reduction

Jacob's Well Groundwater Management Zone Drought Stages:

10% reduction
20% reduction
30% reduction

Sample Drought Cutback Chart

Permittee "Company X"		5 Acre Feet		Drought Contingency Plan			
20XX Permit		1,629,255 Gallons			Production Cutback Chart		
	Actual Use		Stage 1	Stage 2	Stage 3	Stage 4	
	Gallons	Baseline	Voluntary	Alarm	Critical	Emergency	Gallons
	Gallons	Gallons	10%	20%	30%	40%	Over
January		6% 97,755	87,980	78,204	68,429	58,653	
February		7% 114,048	102,643	91,238	79,833	68,429	
March		7% 114,048	102,643	91,238	79,833	68,429	
April		7% 114,048	102,643	91,238	79,833	68,429	
May		8% 130,340	117,306	104,272	91,238	78,204	
June		10% 162,926	146,633	130,340	114,048	97,755	
July		12% 195,511	175,960	156,408	136,857	117,306	
August		12% 195,511	175,960	156,408	136,857	117,306	
September		10% 162,926	146,633	130,340	114,048	97,755	
October		8% 130,340	117,306	104,272	91,238	78,204	
November		7% 114,048	102,643	91,238	79,833	68,429	
December		6% 97,755	87,980	78,204	68,429	58,653	
Totals	0	1,629,255	1,466,330	1,303,404	1,140,479	977,553	0

SECTION 6 - Conservation Recommendations

- Use rainwater for outdoor irrigation (and whole building when possible)
- Use Native or adapted plants that require little or no supplemental water after establishment
- Check and repair irrigation systems regularly to prevent leaks (leaks are Waste)
- Limit irrigation to between 9pm and 8am once per week and use a timer
- Convert sprinklers to drip irrigation
- Avoid irrigating on windy days or during Winter
- Use mulch to conserve soil moisture
- Limit washing of vehicles or use a commercial car wash which recycles water
- No washing of driveways, sidewalks or streets
- Cut lawn on highest setting and leave lawn clippings on lawn instead of bagging
- Reduce shower times or draw less water for baths, and turn off faucets and cover pools when not in use
- Only run dishwasher and washing machines with full loads

☒ I understand and agree that my typed name is considered my official signature.


Signature

8/4/22
Date

Save the Completed Application and
attach in an Email to
GM@haysgroundwater.com

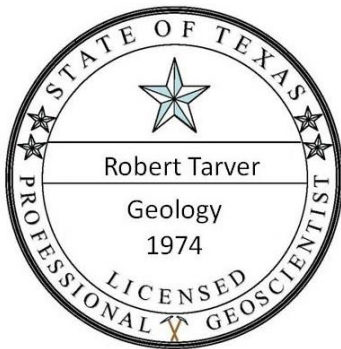
POLLUTION HAZARD SURVEY

PROPOSED CONSTRUCTION OF PUBLIC WATER SUPPLY WELL

**999 & 800 Buttercup Lane
Wimberley, Texas**

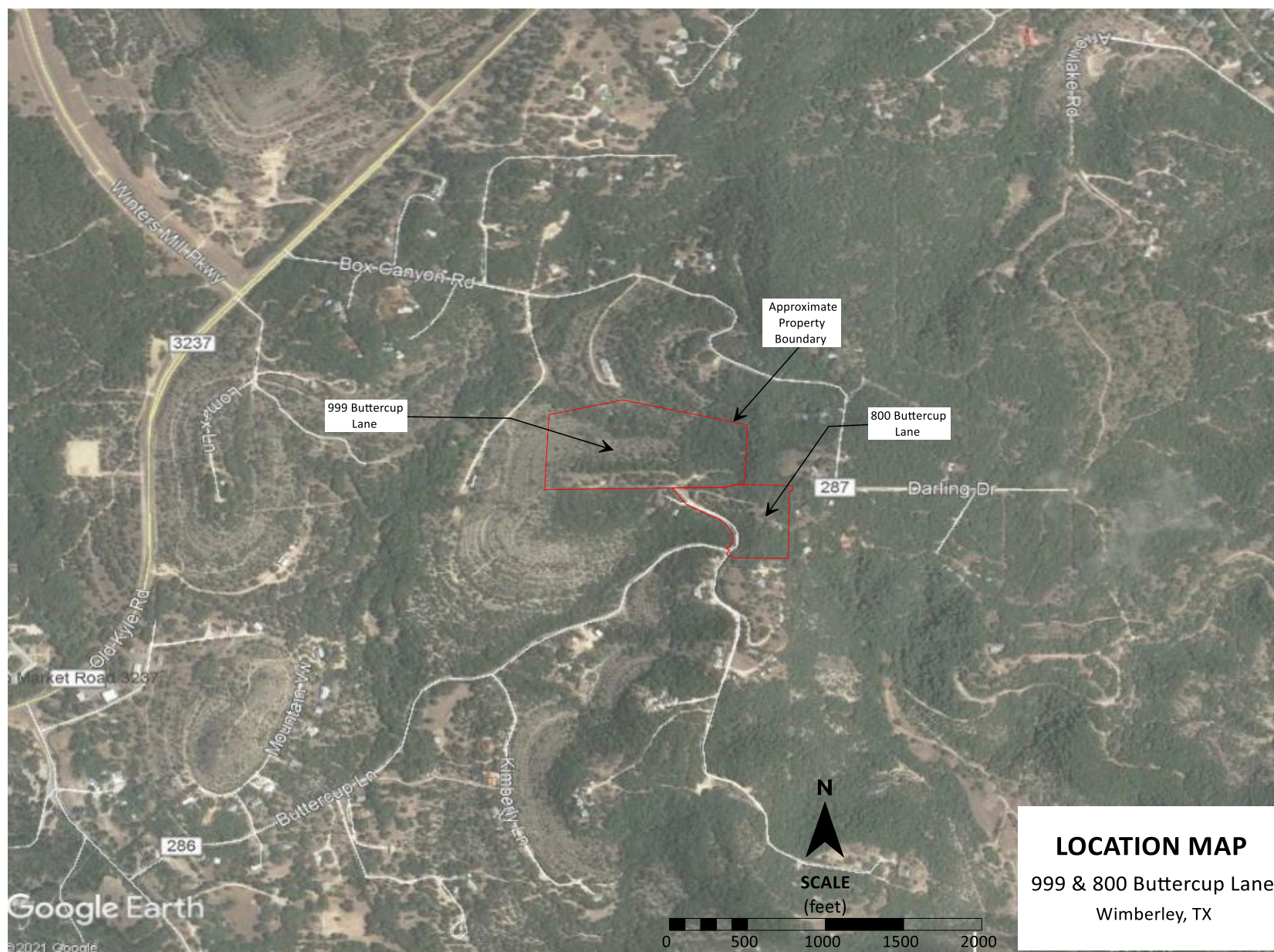
October 12, 2021

Prepared by: Tarver Geologic Services, LLC
Robert R. Tarver, P.G.
2123 Divide Pass
Blanco, Texas 78606

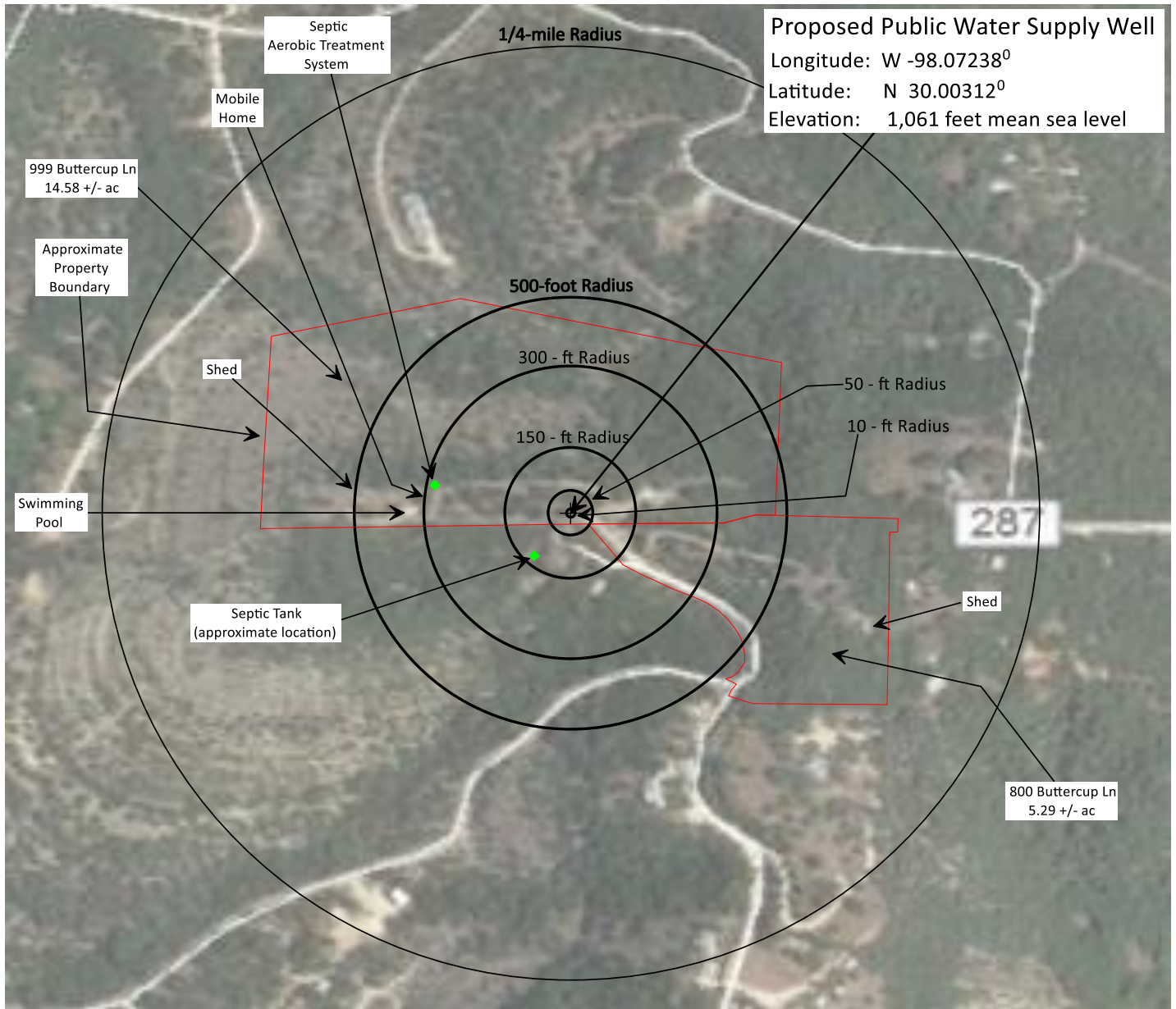


12-October-2021

A handwritten signature in cursive script that reads "Robert Tarver".



Tarver Geologic Services, LLC
Blanco, Texas



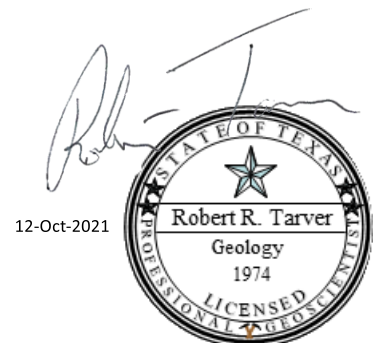
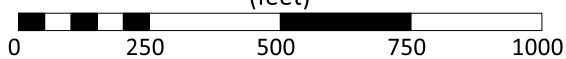
Modified from Google Earth Imagery, 2021
 Well Data from TWDB, TCEQ and Site Visit

SITE MAP & POLLUTION HAZARD SURVEY

999 & 800 Buttercup Lane
 Wimberley, TX



SCALE
(feet)

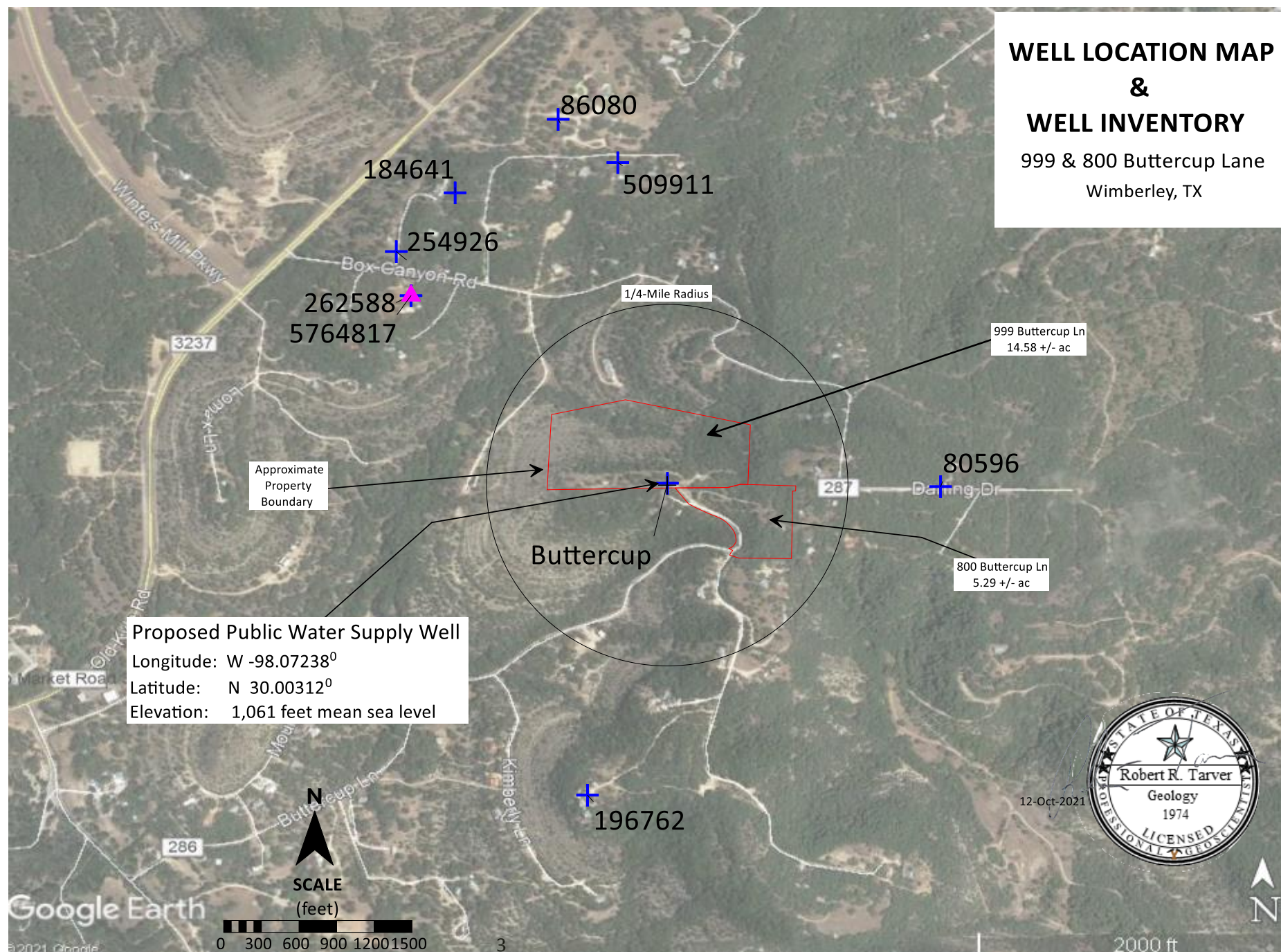


12-Oct-2021

Tarver Geologic Services, LLC
 Blanco, Texas

WELL LOCATION MAP & WELL INVENTORY

999 & 800 Buttercup Lane
Wimberley, TX



POLLUTION HAZARD SURVEY
PROPOSED PUBLIC WATER SUPPLY WELL
999 & 800 Buttercup Lane
Wimberley, Texas

1.0 METHODOLOGY

1.1 Introduction

The subject property is located at 999 & 800 Buttercup Lane, Wimberley, Hays County, Texas. The two lots are approximately 14.58+/- acres and 5.29+/- acres. A Pollution Hazard Survey in compliance of 30 TAC Chapter 76 §290.41 (c)(1)(A)-(E) was conducted on October 7, 2021. The site pollution hazard survey was performed on that date by Robert Tarver, P.G. (TBPG No. 1974). The purpose of the field work is to identify all existing or potential pollution hazards within ¼-mile of the proposed well site. The Pollution Hazard Survey Site Map as required by the TCEQ Proposed Water Supply Well Construction Checklist illustrates the location, coordinates, elevation, and radius buffers around the proposed well location. Located water well coordinates are presented in the Appendix. The proposed well site was observed and located using a handheld GPS.

1.2 Scope of the Work

The work conducted for the pollution hazard survey included a search of the State of Texas Submitted Driller's Reports (TWDB), the TWDB Groundwater Database, Brackish Water Database and the TCEQ Plotted Well Reports. Wells located to a radius of ¼-mile of the proposed public water supply are plotted on a site map. During the field survey these water well locations were identified and confirmed. Wells on private property were confirmed visually without trespassing on private property when permission for access of those properties could not be obtained. Possible pollution hazards were identified in the field and located using a handheld GPS unit. These possible pollution hazards were plotted on the site map and overlain with radius buffers of 50 feet, 150 feet, 300 feet, 500 feet and ¼-mile as required by the TCEQ Proposed Water Supply Well Construction Checklist and 30 TAC §290.41 (c)(1)(A)-(E).

2.0 RESULTS

2.1 Pollution Hazard Site Map

The site map with the plotted and field located possible pollution hazards is presented above. The site map is of appropriate scale illustrating the proposed public water supply well location, named roadways, property boundaries, adjacent property owner names, concentric circles centered on the proposed well of 10-feet, 50-feet, 150-feet, 300-feet, 500-feet and ¼-mile are plotted.

2.2 Pollution Hazards

Referring to the Pollution Hazard & Site Map, the following field conditions and possible pollution hazards documented herein are identified as a result of the site visit survey conducted on April 14, 2020. All radii are centered on the proposed well location.

- a. 50-Foot Radius: No tile or concrete sanitary sewers, sewage appurtenances, septic tanks storm sewers, cemeteries, or livestock in pasture are located within 50-feet of the proposed public water supply well.
- b. 150-Foot Radius: No septic tank perforated drain fields, areas irrigated by low dosage, low angel spray on-site sewage facilities, absorption beds, evapotranspiration beds or underground fuel or petrochemical storage tanks or pipelines are located within 150-feet of the proposed public water supply well. However, a septic tank associated with a residence was observed to be located approximately 137 feet southwest of the proposed well site on the neighboring property. Note that permission to the adjacent property was not obtained and the distance from well site to the tank was not determined with accuracy. The plotted location and distance are estimated visually by Mr. Tarver and by utilizing Google Earth imagery.
- c. 300-Foot Radius: No sewage wet wells, sewage pump stations, or drainage ditches which contain industrial waste or sewage treatment waste are located within 300-feet of the proposed public water supply well.
- d. 500-Foot Radius: No sewage treatment plants, livestock and animal feed lots, solid waste disposal sites, lands on which sewage plant or septic tank sludge is applied, or lands irrigated by sewage plant effluent are within 500-feet of the proposed public water supply well.
- e. ¼-Mile Radius: No abandoned or inoperative wells were found with ¼-mile of the proposed public water supply well. The following potential pollution hazards are located within ¼-mile of the property:
 - One (1) of septic tank is located approximately 137 feet from the proposed well as described in Item 2.2 b above.
 - An aerobic septic treatment system is located at 999 Buttercup Lane at a distance greater than 150 feet and less than ¼-mile from the proposed public water supply well. This system is west-southwest of the proposed PWS well.

APPENDIX

WATER WELLS WITHIN A 1/2-MILE RADIUS

999 Buttercup Lane, Wimberley, TX

Well Report Tracking Number	Latitude (DD)	Longitude (DD)	Borehole or Well Depth (ft)	Static Water Level (ft)	Estimated Yield (gpm)	Date of Well Completion	Proposed Use	County	Well Owner	Well Street	Well City
Buttercup Well	30.00312	-98.07238	775	ND	ND	ND	Domestic	Hays			
80596	30.003056	-98.067222	650	185	7	27-May-04	Domestic	Hays	LYNDA SEBRING	888 Buttercup Lane	Same
86080	30.010001	-98.074444	870	ND	100	23-Apr-06	Domestic	Hays	BEN HUNT for TIM SHAW	Box Canyon	Wimberley
184641	30.008612	-98.076389	540	240	10	15-Aug-04	Domestic	Hays	Sierra Classic Homes	1530 FM 3237	Wimberley
196762	29.997222	-98.073889	650	387	55	29-Sep-09	Domestic	Hays	FRED & BARBARA STOCKBAUER	1100 BUTTERCUP DRIVE	WIMBERLEY
254926	30.007501	-98.0775	500	250	6	13-Nov-05	Domestic	Hays	Andrea Guardione / Sierra Classic	201 Box Canyon	Wimberley
262588	30.006667	-98.077222	500	289	20	17-Jun-11	Domestic	Hays	Jerry Langston	222 Box Canyon	Wimberley
509911	30.009183	-98.073317	850	360	75	28-Feb-19	Domestic	Hays	BRYCE ALLISON	275 BOX CANYON RD.	WIMBERLEY
5764817	30.006667	-98.077222	500	289	20	18-Jun-11	Observation	Hays	Jerry Langston	222 Box Canyon	Wimberley

Notes:

1. Source; Texas Water Development Board, State Water Well Driller Reports
2. No water well data resulted from the TWDB online search for Plugging Reports, Bracs Data, nor TCEQ Plotted Well Reports.
3. Wells within ¼-mile radius are plotted on the Pollution Hazard Survey map presented in the text of the survey report.